



Miran Energy LTD.

Purchase Order

2nd Floor Main Building, Slemani Heights, Sulaimaniyah, Postal Code: 46001, Iraq

Company Name:	AL NUHA Company for General Contracts & Industrial Equipment trading	PO#	MEL-RA-845026
Address:	Al Whadaa District, Dist..906 Alley 14 Bldg. 6, Baghdad, Iraq	PR#	MR-EPF-100-IC-RFQ-0039-REV01
Phone:	+964 7901 988689	Date of Initial PO	18/Aug/2026
Mobile:	+964 790 135 8159	Page#	3
Fax:		Date of Revised PO	
Contact Person/Email:	Ahmed.Alrufaiee@alnuha-group.com	Currency	IQD
		Prepared By	Rawa Amanj

Sr	Item Code	Item / Description	Site	UOM	Quantity	Unit Cost	Total Cost
1	NA	CORIOLIS FLOW TRANSMITTER Tag: FIT-53031 Promass F 200, 8F2B80, DN80 3" Coriolis flowmeter Inline version.Highest measurement performancefor liquids and gases	MEL	Each	1.00	IQD 22,995,750	IQD 22,995,750
Sub Total							IQD 22,995,750.00
Discount							IQD 1,023,000.00
Extra							
Total Amount							IQD 21,972,750.00

Our Shipping Address (Consignee) :	Billing Address:
Miran Energy LTD Sulaimaniyah-Kirkuk Road, Postal Code: 46001, Iraq	TAURUS ARM Co. for Power Generation & Oil Services and Transportation Limited ("TAURUS") for Miran Project Miran Energy LTD. To: prjoect.invoices@miranenergy.com 2nd Floor Main Building, Slemani Heights, Sulaimaniyah, Postal Code: 46001, Iraq

COMPANY:

COMPANY:

CONTACT PERSON: Godspower.Ebiks@miranenergy.com
MOBILE PHONE: +964 773 890 6365

Terms & Conditions:	
Payment Terms	25% Advance with PO, remaining 75% after delivery.
Delivery Date	75 Days After Accepting the Purchasing Order & Receiving Advanced Payment.
Delivery Terms (Incoterm 2020)	DDP-Miran Site
Origin of Goods	Endress+Hauser-Switzerland
Warranty	12 months from putting Goods into operation or 18 months after their delivery, whichever period expires the sooner.
Quote Ref#	OFE4351556
Quote Date	17/Aug/2026
RFQ Ref#	MR-EPF-100-IC-RFQ-0039-REV01

Other Instruction (if any)

If you have any questions about this purchase order, Please contact us.

Terms & Conditions

1. DEFINITIONS: As used in these terms and conditions: a) "Order" means the Purchase Order and all attachments, exhibits and documents referenced therein and all terms and conditions thereof, together with any subsequent modifications thereto. b) "Materials" means any materials, machinery, equipment, article, item, services or work provided for in the Order. c) "Vendor" means the person, firm, company or corporation to whom the Order is issued. d) "Purchaser" means **Client** e) "Force Majeure" means war, (whether declared or not), invasion by foreign enemies, rebellion, revolution, insurrection or military or usurped power, civil war, riot, fire, flood or any other operation of the forces of nature as reasonable foresight and ability by the party affected could not foresee or reasonably provide against, if and to the extent the performance of the Order is affected hereby.

2. ACCEPTANCE OF PURCHASE ORDERS: The Order is conditioned on Vendor's acceptance of all terms and conditions thereof. Vendor shall be deemed to have accepted and be bound by the Order when the Purchase Order is signed or when he commences work on and/or delivers any of the Materials ordered or performs any of the services referred to therein or receives any payment thereunder, whichever occurs first. The Vendor agrees that these Standard Terms and Conditions apply and govern to the exclusion of all others unless otherwise agreed upon by both parties. In the event of any contradiction within the Order documents, the Purchase Order shall prevail. Instruction and variations to the Order must be confirmed in writing by the Purchaser's authorized representative without which payment may be withheld.

3. MODIFICATIONS, REVIEW AND INSPECTION: Purchaser shall have the right to modify the Order. No such modification shall affect any of the provisions of the Order unless Vendor notifies the Purchaser in writing of any proposed change within two (2) weeks of the issuance of such modification. No agreement or understanding to modify the Order shall be binding on the Purchaser unless confirmed in writing and signed by the Purchaser. Unless specifically stated in writing by an authorized representative of Purchaser, Purchaser's review and comments to Vendor's drawings or specifications, inspection of the materials during or after manufacture or at the time of delivery, approval or acceptance, or failure to so act, or payment for the materials shall in no way constitute a waiver or release by Purchaser of Vendor's guarantees and liabilities set out elsewhere herein.

4.A Liquidated Damages for delay: The time(s) of delivery is a critical element in the Order and must be adhered to. Vendor shall be liable for Liquidated Damages for late delivery, and this will be applicable if the machines are not ready to be shipped after two weeks from the agreed delivery date as stipulated in this purchase Order. (Liquidated Damages for 1% of the contract value per week capped at 10% of total amount of the contract only on delayed items). After such period, buyer has the right to cancel the order, and request for full funds remitted to supplier.

4.B Liquidated Damages for performance (if applicable): Once arrived to site, seller will send technicians to start the installation & training & commissioning phase after buyer request.

At the end of commissioning, if performance criteria is not obtained, for reason solely attributed to the seller, the rate of liquidated damages for such non-conformities shall be charged at a rate of 5% of the equipment value involved in the late performance for every calendar week that the breach/failure is not remedied. Such liquidated damages, however, shall not exceed 30% of the total value of the order amount.

5. DELIVERY TERMS:

A. The time of delivery is to be determined by taking date of Pre-payment of the project amount to the Vendor's Bank Account.
B. Time is of the essence. Seller shall furnish sufficient labor and management forces, plant and equipment and shall work such hours as may be required to assure timely delivery.
C. All delivery terms used in this Order and all deliveries made are to be in accordance with Incoterms 2020 and subsequent addenda thereto, as issued by the International Chamber of Commerce in, prior to the date of the Order.

6. TERMINATION AND WAIVER: 6.1 If the Vendor commits any breach of these terms and conditions or becomes subject to bankruptcy, insolvency or receivership proceedings, or, where applicable, has received a judicial declaration of suspension of payments or shall pass a resolution for winding up (other than for the purposes of amalgamation or reconstruction) or a Court shall make an order to that effect against it or shall enter into any composition or arrangement with its creditors, the Purchaser may without prejudice to its other rights and remedies or any part thereof terminate the Order forthwith. 6.2 The Purchaser may at any time terminate the Order in whole or in part by written notice to the Vendor without prejudice to any other rights purchaser may have as a result thereof. If such termination occurs under circumstances not covered under condition 6.1 above, Purchaser may make payment to the Vendor for reasonable cancellation costs. In the event of termination of the Order, Vendor's right to any

payments under the Order whether due on or after such case of termination shall also terminate. 6.3 A waiver on the part of the Purchaser or Vendor of any breach of any term, provision or condition of the Order shall not constitute a precedent nor bind either party hereto to a waiver of any succeeding or other breach of the same or any other term, provision or condition of the Order, or any other order between Purchaser or Vendor.

7. INSPECTION AND TESTING: All inspection and tests shall be carried out as necessary and also as required by the Order specifications issued by the Purchaser. All Materials shall be subject to inspection, at the option of the Purchaser, by representatives of the Purchaser, at all reasonable times and places before, during and/or after manufacture. The Purchaser will inform the Vendor on the visit(s) a week in advance for planning purposes at the Vendor's side. Vendor shall inform the Purchaser in writing by letter, facsimile, cable, telex or electronic message as the circumstances warrant, fourteen days in advance of final tests and/or inspection or any other tests that may be prespecified. Before dispatching the Materials, the Vendor shall carefully inspect and test them for compliance with the requirements of the Order.

8. REJECTION: If, as a result of the inspection, examination or testing referred to in Condition 7, the Purchaser decides that the Materials, or any part thereof, is defective or otherwise not in accordance with the Order, he may reject such Materials and shall notify the Vendor thereof. The Vendor shall then with all speed make good the defect or ensure that the Materials comply with the Order. If the Purchaser requires such Materials to be retested, the tests shall be repeated under the same terms and conditions. All costs incurred by the Purchaser by the repetition of the tests shall be deducted from the Order Price if reasons of failure attributed to seller. If the Vendor is unable to provide Materials in compliance with Order in an acceptable time frame it will be the option of the Purchaser to either cancel the Order or to accept different Materials at a cost reduction to be determined.

9. VENDOR GUARANTEES: All Materials furnished by the Vendor (irrespective of whether design, data or information has been incorporated in the Order or has been furnished, reviewed or approved by the Purchaser) are guaranteed by the Vendor to be new, of the best quality and workmanship of their respective kinds unless otherwise authorized in writing by Purchaser, shall be free from faulty design and shall be in accordance with the Purchase Order's specifications so as to fulfill in all respects the necessary requirements, if any, as may be specified by the Purchaser. If any trouble or defect originating with the design (other than design made, furnished or specified by the Purchaser for which the Vendor has in writing disclaimed responsibility at, or prior to, Order placement), material, workmanship or operating characteristics of any Materials arises at any time up to one (1) year from the date when the facilities in which the Materials are incorporated are started-up, or eighteen (18) months from the date of shipment (whichever period expires earlier) and the Vendor is notified thereof subject as hereinafter provided, the Vendor shall at his own expense and as quickly as possible, make such alterations, repairs and replacements as may be necessary to permit the Materials to function in accordance with the specifications and to comply with the above guarantee. In the event that the Purchaser decides that the consequences of any such trouble or defect cannot adequately be remedied as aforesaid, then the Purchaser, may, at its option elect either to accept the defective Materials with an adjustment to the purchase price or to direct that the defective Materials be removed at the Vendor's expense as quickly as possible. In which latter event the Vendor shall at the Purchaser's option, but without cost to the Purchaser, either immediately furnish proper Materials (including, where appropriate, the removal of the defective Materials and the installation of such proper Materials), or refund to the Purchaser such portion of the purchase price as shall have been paid. In the event of any rectification work as aforesaid, the above guarantee shall apply to such rectification work for a period of 12 months from its completion or until expiry of the above-mentioned guarantee period, whichever period expires later. The foregoing guarantees shall be without prejudice to any other rights which the Purchaser have against the Vendor in respect of any breach of the terms and conditions of this Order. However, should the defect be later determined to arise due to the Purchaser, Purchaser shall reimburse to Supplier the costs to mobilize its personnel to the Purchaser's site, or as mutually agreed between the parties;

10. ASSIGNMENT AND SUBCONTRACTING: Vendor shall not assign or subcontract the Order or any part thereof or any amounts due thereunder without the written consent of the Purchaser. Any such permitted assignment or subcontracting shall not relieve the Vendor of any of its obligations under the Order.

11. TAXES, UNEMPLOYMENT BENEFITS, ETC.: Vendor hereby accepts exclusive liability for and agrees to indemnify Purchaser against liability for the payment of any and all contributions or taxes for unemployment insurance, social security payments, old age pensions or annuities or other purposes now or hereafter imposed by any applicable government regulation or ordinance or other binding instrument which are in whole or part measured by and/or based upon the wages, salaries, or other remuneration paid to persons employed or used by Vendor or work in connection with this Order.

Terms & Conditions

12. CONFIDENTIAL INFORMATION: All drawings, blueprints, designs, sketches and technical data (Technical Information) provided by Purchaser to the Vendor are to be maintained in strict confidence and used solely for purposes of the Order. Any disclosures of Technical Information to Third Parties shall be made in confidence and with similar limitations on use. Technical Information provided by Purchaser hereunder shall remain the property of the same and Vendor shall return all Technical Information upon demand. This obligation does not apply to information which at the time of disclosure is in the public domain or is in the Vendor's lawful possession without restriction on disclosure. All Vendor's background information utilized during performance under this Order, including all enhancement and developments from its background information, shall remain the property of the Vendor. The Purchaser is granted a license and right-to- use the Vendor's information solely for the Order and / or maintenance of the goods. Purchaser shall be transferred the license without the Vendor's written consent.

13. PUBLICITY: The Vendor shall not publish or make public any reference to the Purchaser or to any company affiliated to the in connection with the Materials, without the prior written permission of the Purchaser.

14. CONSEQUENTIAL DAMAGES: Except to the extent explicitly stated, Vendor shall in no event be liable to Purchaser for consequential or special damages in connection with the Order.

15. LIENS: Vendor shall not claim any liens, attachments or other similar claims in connection with the Materials and shall defend and indemnify the Purchaser against any and all liens, attachments or other similar claims.

16. PATENT INDEMNITY: Vendor hereby warrants that the use or sale of the Materials delivered hereunder will not infringe any patent rights related to such Materials and Vendor shall indemnify the Purchaser, their successors, assignees, vendees, and users of the Materials, against any action, claim or demand, costs and expenses, arising from or incurred by reason of any infringement or alleged infringement of any letters patent, registered design, (to the extent that the design for such Materials is not furnished by the Purchaser), trademark or name, copyright or any other protected rights in respect of any materials supplied, or any arrangement system or method of using, fixing or working used by the Vendor. In the event of any claim or demand being made or action brought against the Purchaser or any of their successors, assignees, vendees, and users in respect of any of the aforesaid matters, the Vendor shall be notified thereof immediately and the Vendor shall, at the request of the Purchaser, conduct at its own expense all negotiations for the settlement of the same and/or litigation which may arise therefrom. If the Purchaser decides to conduct such negotiations or litigation itself, Vendor shall, at its own expense, render all required assistance. Vendor shall in such event have the right to be represented by an advisory counsel of its own selection.

17. LIABILITY AGREEMENT: The Vendor shall defend and hold the Purchaser (including their successors, assignees, vendees and users of the Materials) harmless from all claims and liability for injuries to, and/or death of, any Party under the Order and for loss of and/or damage to property caused in whole or in part by the negligence or willful acts of Vendor in connection with Materials furnished hereunder, including without limitation, the installation, erection, repair, adjustment or operation thereof. Notwithstanding the foregoing the Vendor shall if he elects to utilize materials, tools, equipment or facilities made available to Vendor by Purchaser, for use by the Vendor and not to be incorporated in the work, as additional consideration therefore, defend and save Purchaser, or either of them (including their successors, assignees, vendees, and users of the Materials) harmless from all claims and liability for injuries to, and/or death of any Party under the Order, and for loss of and/or damage to property resulting from or by reason of the Vendor's utilization thereof. Except for liquidated damages to be paid by the Vendor, injury or death to parties under the Order according to the law, and property damage up to USD 2 million, the Vendor's maximum aggregate liability under the Order shall not exceed the Order Price.

In any case where it is necessary for employees, subcontractors, agents or representative of the Vendor to go upon the premises of the Purchaser, the Vendor agrees to assume full responsibility for the proper conduct of such employees, subcontractors, agents or representatives while on said premises and also to comply with all applicable Workmen's Compensation Laws, with all relevant requirements of any applicable government regulation or ordinance or generally binding instrument, and with all site rules and regulations, particularly in regard to safety precautions, fire hazard and work permit system. If the Order requires the Vendor to furnish labour in connection with erection or installation of the Materials at the site, the Vendor

shall furnish the Purchaser with a certificate, or other evidence satisfactory to the Purchaser, indicating that such labor is adequately covered by Workmen's Compensation Insurance and Employer's Liability Insurance or comparable types of insurance with limits acceptable to the Purchaser.

18. STATUTORY REQUIREMENTS: The Vendor warrants that the design, construction and quality of the Materials shall comply in all respects with all relevant requirements of any applicable government regulation or ordinance, or other generally binding instruments which apply to the manufacture and, where appropriate, the subsequent operation of the Materials, including all applicable regulations, rulings, orders and standards in regard to health or safety.

19. FREE ISSUE MATERIAL: Any materials being supplied as free issue by the Purchaser to the Vendor for incorporation into, or work in connection with the Order are to be protected and insured for the full replacement value by the Vendor while in the Vendor's possession. Ownership of such materials remains with the Purchaser at all times. The Purchaser shall have access to such materials at all times and Vendor is responsible for ensuring that clear identification of such materials is properly carried out.

20. OWNERSHIP AND RISK: 20.1 Ownership of the Materials to be supplied by the Vendor hereunder shall pass to the Purchaser, when such Materials have been paid by a total of 90% to the vendor. Where partial payment has been made, purchaser shall have an interest in the goods paid for.

20.2 Notwithstanding the above, unless anything to the contrary is provided for herein, the Materials shall be at the Vendor's risk until delivered as specified in the Order.

20.3 In the event of termination of the Order the Purchaser shall have the right to enter upon the Vendor's premises to take possession of Materials allocated under Condition 20.1 above, without prejudice to any other claims which the Purchaser may have under the Order or under any letters of credit, bank guarantees or other forms of security.

21. PRICE AND PAYMENT: The price stated on the Order for delivery of Materials shall be fixed and firm in the currency of purchase order. Payment shall be made according to the terms of payment mentioned on purchase order from the date of receipt of invoice along with documents evidencing satisfactory delivery and acceptance by Purchaser. Under no circumstances shall the Vendor request the Purchaser to provide any Letter of Credit.

22. PACKING AND TRANSPORTATION: The Materials shall be carefully packed and protected to ensure adequate protection, taking into account any special requirements contained in the Order. The cost of all packing, boxing and/or crating, carriage, etc., is included in the price specified on the face of the Order, unless otherwise specifically agreed to in the Order. The protection and packaging are deemed to be non-returnable unless otherwise agreed in writing by the Purchaser. Materials delivered in error or in excess of the quantity called for, may, at Purchaser's option, be returned to Vendor at Vendor's expense.

One set of packing list showing complete details of the consignment and also one copy of the material certificate(s) must be placed inside the consignment. A second set must be given to our nominated shipper. A scanned copy shall be sent to us once available.

23. MARKING: Every package shall be marked clearly on at least two sides as follows:

DESTINATION:	Our Company Name & Delivery Address
PURCHASE ORDER NO:	XXXX/.....
COUNTRY OF ORIGIN:	
ITEM NO:	
PACKAGE NUMBER:	
NET WEIGHT:	
GROSS WEIGHT:	
DIMENSIONS:	

Handling & storage instruction shall also be marked clearly where such instruction are necessary to ensure compliance with the technical requirements of the Purchase Order.

24. CERTIFICATES: Supplier shall send (Material) certificates to Client for reviews, as soon as they become available, in accordance with the requirements of the technical documentation sheet, and technical documentation in the requisition which forms part of this purchase order.

25. OTHERS: All specification, standards and drawing(s) referenced in our requisition(s) form an integral part of this Purchase Order. Moreover, in the event of any conflict between individual documentation listed above the order of precedence between the document shall be list as above. Vendor explicitly expresses its own rights on the design of Materials and declares only sale of a copy/copies of the Materials as a final product to the Purchaser.

26. GOVERNING CONDITIONS AND LAW: This Order shall be governed by the laws of the purchaser's governing country.

Supplier Initials: _____

Internal